

STATE OF NEW YORK

7892--A

2025-2026 Regular Sessions

IN SENATE

May 13, 2025

Introduced by Sen. GONZALEZ -- read twice and ordered printed, and when printed to be committed to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to directing the commissioner of education to make recommendations to the board of regents regarding the incorporation of instruction in artificial intelligence system literacy into the school curriculum

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Legislative intent. The legislature finds and declares all
2 of the following:

3 (1) The State does not have an official artificial intelligence liter-
4 acy curriculum framework to ensure the teaching of AI literacy content
5 to every pupil.

6 (2) The growing prevalence of artificial intelligence systems in daily
7 life necessitates comprehensive AI literacy education for all elementary
8 and secondary pupils.

9 (3) A foundational understanding of AI systems is becoming essential
10 for informed participation in modern society and the future workforce.

11 (4) Students require the skills to critically evaluate AI-generated
12 content and understand the implications of AI systems in their lives.

13 (5) The state has a strong interest in ensuring that its pupils are
14 equipped to understand the capabilities, limitations, and ethical
15 considerations of AI technologies.

16 § 2. Section 305 of the education law is amended by adding a new
17 subdivision 33 to read as follows:

18 33. a. The commissioner shall make recommendations to the board of
19 regents relating to the incorporation of artificial intelligence system
20 literacy content into the curriculum at each grade level in elementary
21 schools, junior high schools, and senior high schools. Such content

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 shall include, with differentiation for students' capacity to understand
2 such topics across ages and stages of students' development:

- 3 (i) basic concepts and functioning of AI systems;
- 4 (ii) critical evaluation of AI-generated content and AI system output;
- 5 (iii) practical applications and limitations of AI;
- 6 (iv) ethical considerations and societal impact; and
- 7 (v) safe and responsible interaction with AI systems.

8 b. Prior to making the recommendations to the board of regents, the
9 commissioner shall:

10 (i) seek recommendations from the director of the state office of
11 information technology services;

12 (ii) seek the recommendations of teachers, school administrators,
13 teacher educators and others with educational expertise in the proposed
14 curriculum;

15 (iii) seek comment from parents, students and other interested
16 parties;

17 (iv) consider the amount of instructional time such curriculum will
18 require and whether such time would detract from other mandated courses
19 of study;

20 (v) consider the fiscal impact, if any, on the state and school
21 districts; and

22 (vi) consider any additional factors the commissioner deems relevant.

23 c. No later than one hundred eighty days after the effective date of
24 this subdivision, the commissioner shall provide a recommendation to the
25 board of regents to either adopt and promulgate appropriate rules and
26 regulations implementing such curriculum or reject the implementation of
27 such curriculum. Upon receiving a recommendation from the commissioner
28 pursuant to this subdivision, the board of regents shall vote to either
29 accept or reject the commissioner's recommendation no later than sixty
30 days after receiving such recommendation.

31 d. If the board of regents adopts such curriculum, the curriculum
32 requirement shall take effect no later than the next school year after
33 such curriculum has been adopted. The board of regents shall develop
34 guidelines for:

35 (i) age-appropriate AI literacy content for each grade level;

36 (ii) integration of AI literacy into existing subject areas;

37 (iii) professional development resources for teachers; and

38 (iv) assessment of student AI literacy competencies.

39 e. If the board of regents rejects such curriculum, the commissioner
40 shall provide a report as to the determination of the board to the
41 governor, the temporary president of the senate, the speaker of the
42 assembly and the chairs of the senate and assembly committees on educa-
43 tion providing the reasons for such rejection not later than thirty days
44 after the board of regents rejects such curriculum.

45 f. For purposes of this subdivision, the following definitions apply:

46 (i) "Artificial intelligence system" or "AI system" means an engi-
47 neered or machine-based system that, for explicit or implicit objec-
48 tives, infers from the input it receives how to generate outputs that
49 can influence physical or virtual environments.

50 (ii) "AI literacy" means the ability to understand, critically evalu-
51 ate, and interact with artificial intelligence systems, including know-
52 ledge of their basic functioning, capabilities, limitations, and socie-
53 tal implications, and the skills to use them.

54 § 3. This act shall take effect immediately.